

25STCV17696 25STCV17696

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-07-28

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Case Number: 25STCV17696 Hearing Date: July 28, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

28, 2026 TRIAL

DATE: June 5, 2028

CASE: Veritext, LLC v. Nancy Anfanger

CASE NO.: 25STCV17696

DEFENDANT NANCY ANFANGER'S MOTION COMPELLING THE APPEARANCE
AND PRODUCTION OF DOCUMENTS FOR DEPOSITION FROM PLAINTIFF VERITEX, LLC, DBA ATKINSON
BAKER, A VERITEXT COMPANY'S PMQ RE: THE ORAL CONTRACT ALLEGED IN THIS LAWSUIT AND
RELATED FACTS AND ISSUES, AND ALL DOCUMENTS FOR DEPOSITION DEMANDED IN
ATTACHMENT A, AND ATTACHMENT A

MOVING

PARTY: Defendant Nancy B. Anfanger, in
pro per

RESPONDING

PARTY: No opposition

I. INTRODUCTION

On June 23,

2026, Defendant,

Nancy B. Anfanger, filed this motion to compel Plaintiff, Veritext, LLC, to produce a person most qualified (PMQ) for deposition, and to produce documents at the deposition. Defendant requests sanctions against Plaintiff and its counsel of record.

At the time of

this writing, no opposition has been filed.

II. LEGAL STANDARD

Any party may obtain discovery by taking in California the oral deposition of any person. (Code Civ. Proc., § 2025.010.) “If, after service of a deposition notice, a party to the action...without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (a).)

Monetary Sanctions

Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for “misuse of the discovery process,” which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. (Code Civ. Proc., § 2023.010.)

If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion

be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction. 22222

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If the court finds that a party has unsuccessfully made or opposed a motion to compel, the court “shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” 2 (Code Civ. Proc., §§ 2030.290(c).) 22

Sanctions may also be imposed against counsel if a party seeking sanctions against an attorney offers sufficient evidence of a misuse of the discovery process, and the attorney fails to demonstrate that he or she did not recommend that conduct. (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 81 (Kwan Software).) 2

III. DISCUSSION

Defendant moves the court for an order compelling Plaintiff to produce a PMQ witness for deposition and to produce documents at the deposition.

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It is undisputed that Defendant properly served Plaintiff with the deposition notice and request for production of documents on April 16, 2026. 2 The notice indicated the deposition would take place on June 4, 2026. However, Plaintiff served an untimely objection to the deposition notice on June 1, 2026 by electronic service. Accordingly, all objections to the deposition notice are waived. Defendant is entitled to an order compelling Plaintiff to produce a PMQ for deposition and to produce documents. 22

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2 Monetary Sanctions 22

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Defendant request sanctions against Plaintiff and its counsel. Given the court's ruling, sanctions are warranted. Pursuant to Kwan Software, imposition of monetary sanctions against counsel is also proper unless counsel shows that he or she did not counsel the discovery abuse. (Kwan Software, supra, 58 Cal.App.5th at p. 81.) Plaintiff's counsel does not meet their burden. The court will impose sanctions against Plaintiff and its counsel. Because Defendant is self-represented and did not include any statement regarding the costs she actually incurred in bringing this motion (see Kravitz v. Superior Court (2001) 91 Cal.App.4th 1015, 1016-1017, 1020 [holding that pro se litigants, including pro se lawyers, who have prevailed on motions to compel responses to requests for production of documents, cannot recover attorney fees as a discovery sanction, but may recover reasonable expenses that were incurred, such as photocopying and computer-assisted legal research]), the court imposes sanctions in the amount of \$200 against Plaintiff and its counsel of record.

IV. CONCLUSION

The unopposed motion is GRANTED. Plaintiff is ordered to produce a PMQ for deposition as well as documents responsive to the production requests within 30 days of this order.

Defendant's request for sanctions is GRANTED. Plaintiff and its counsel of record is ordered to pay, jointly and severally, sanctions in the amount of \$200 to Defendant within 30 days of this order.

Defendant to give notice, unless waived.

Dated: July 28, 2026

Brock T. Hammond

Judge of the Superior Court